

Santosh Stationary (P) Ltd. v. PuVVNL — CGRF order, Ombudsman under 7.10(iv)

High Court of Judicature at Allahabad · Division Bench · 9 May 2017 · WRIT - C No. 20029 of 2017 · **Writ dismissed with liberty to approach the Electricity Ombudsman under Clause 7.10(iv).**

HEADNOTE

A consumer aggrieved by an order of the Electricity Consumer Grievance Redressal Forum—including a finding that the complaint is not covered by Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005—must pursue the statutory alternative remedy of approaching the Ombudsman under Clause 7.10(iv). The writ was dismissed with liberty to approach the Ombudsman within four weeks; the Ombudsman was to decide the grievance on merits preferably within eight weeks.

FACTUAL SUMMARY

M/s Santosh Stationary Private Limited, a consumer of Purvanchal Vidyut Vitran Nigam, approached the Electricity Consumer Grievance Redressal Forum. The Forum recorded that the complaint was not covered within the four corners of Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. Dissatisfied with that finding, the petitioner filed this writ petition in the Allahabad High Court challenging the Forum's order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iv)

Ombudsman as statutory remedy against CGRF order

HOLDING

If a consumer is aggrieved by a decision of the Electricity Consumer Grievance Redressal Forum, including a finding that the complaint is not covered within Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005, the statutory alternative remedy is to approach the Ombudsman under Clause 7.10(iv). A writ against the Forum order was dismissed with liberty to approach the Ombudsman within four weeks; the Ombudsman was directed to decide the grievance on merits preferably within eight weeks of receipt. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Even after the CGRF held the complaint outside Clause 7.10, the Court refused writ examination and relegated the consumer to the Ombudsman under Clause 7.10(iv). ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE COMPLAINT WAS COVERED WITHIN CLAUSE 7.10 OF THE SUPPLY CODE, 2005

¶ 1

NOT DECIDED — MERITS OF THE CONSUMER'S GRIEVANCE AGAINST THE LICENSEE

¶ 1